

CV-26-001757 AHMADI, MOHAMMAD N vs ARNAUD, DOROTHY M – Defendant Filbin Land & Cattle Co. Inc.’s Motion to Set Aside Default and Default Judgment – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The Court declines to take judicial notice of the filings in the instant case, as that is likely unnecessary. The Court takes judicial notice of the Secretary of State information for Filbin, the order authorizing service via Secretary of State in case CV-25-2875, and the service of process in that case via the Secretary of State. In this case, Filbin was aware of the case on or before June 29, 2026 and filed this motion on August 12, 2026. Because Filbin was not represented by counsel in this case as of June 29, it could not appear at the hearing that day. Filbin challenges the service of process as improper substituted service. There are a number of irregularities in the service: The person who mailed the documents is asserted to be both Choudry and Bailey. The substituted service is not clearly authorized by Code Civ. Proc. section 416.10. Plaintiff argues that it was likely the person served was the agent, Jeffrey Arambel. At this point, even assuming it was Arambel, the time between the service and the filing of this motion is less than three months, and the motion would likely be granted, though with payment for the costs of the motion as a condition. Defendant to file an answer within seven days. The matter is set for a Case Status Review on October 27, 2026 at 8:30 a.m. in Dept. 21. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

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